

24STCV11617 24STCV11617

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Case Number: 24STCV11617 Hearing Date: September 15, 2026 Dept: 510

No. 7 - Oscar Perez v. James David Maldonado, et al.

Plaintiff

Oscar Perez's Motion to Quash Deposition Subpoena

Plaintiff

Oscar Perez moves to quash a deposition subpoenas Defendant Music Express, Inc. served on the San Fernando Police Department.

Evidentiary

Objections

Defendants

make 4 evidentiary objections to Plaintiff's evidence. Objection nos. 1-2 (italicized material only) are sustained based on improper argument. Objection nos. 3-5 are overruled.

Plaintiff

makes 4 evidentiary objections to Defendants' evidence. Objections nos. 1-3 are sustained based on lack of foundation or personal knowledge. Objection no. 4 is overruled.

Quash

Subpoena

Upon

a party's motion, a court "may make an order quashing [a] subpoena entirely,

modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person.” (Code Civ. Proc., § 1987.1(a).)

The Court acknowledges that Plaintiff previously moved to quash four identical subpoenas directed at different law enforcement agencies.

Defendants
sought the following documents:

THE RECORDS REQUESTED ARE from
09/05/2014 to 08/27/2022 FOR THE FOLLOWING TYPES OF RECORDS: ALL LAW ENFORCEMENT REPORTS, INCLUDING BUT NOT LIMITED TO, CRIME REPORTS, INCIDENT REPORTS, CONTACT REPORTS, SUSPICIOUS BEHAVIOR REPORTS, FIELD INTERVIEW NOTES OR REPORTS, FIELD INTERVIEW (FI) CARDS, INCIDENT OR EVENT CARDS OR REPORTS, ANY AND ALL REPORTS WHERE OSCAR PEREZ-SIANUQUI AKA OSCAR PEREZ, OSCAR PEREZSIANUQUI (DOB: 9/4/1996) IS LISTED AS A SUSPECT, A WITNESS, A PERSON OF INTEREST TO A CRIME, OR PRESENT AT THE SCENE OF A CRIME. ALSO, ANY AND ALL REPORTS FROM CASE NUMBER LASPA096960-01, AN INCIDENT OCCURRING ON JANUARY 2, 2021.

(Khatchaturian
Decl., Ex. A.)

On
August 14, 2026, the Court quashed the subpoenas, finding they were overbroad and sought irrelevant information as drafted.

Now, Plaintiff seeks to quash an
identical subpoena directed to the San Fernando Police Department. In
opposition, Defendants request the Court exercise its authority under CCP §
1987.1(a) to modify the subpoena to seek a narrowed set of documents:

Any traffic collision report, crime
or criminal report, incident report, arrest report, event or dispatch report,
or other document containing information concerning a traffic collision
occurring between June 1, 2019 and July 31, 2019 in which OSCAR PEREZ-SIANUQUI
aka OSCAR PEREZ aka OSCAR PEREZ-SIANUQUI (DOB 9/4/1996) was involved, and in

which Mr. Perez jumped or climbed onto a moving vehicle that thereafter collided with a tree, injuring Mr. Perez and Carla Guzman.

(Opp.,
at p. 2.)

The Court finds that this narrowed subpoena addresses its prior concerns regarding overbreadth and relevance. As revised and narrowed, the subpoena is tailored to seek documents regarding one traffic collision incident. Whether the documents produced in response to the subpoena will ultimately be admissible at trial is irrelevant to whether it is ultimately discoverable at this stage. “[A]dmissibility is not prerequisite to discoverability.” (Volkswagen of America, Inc. v. Superior Court (2006) 139 Cal.App.4th 1481, 1492.)

Plaintiff’s

privacy concerns do not outweigh Defendants’ need for disclosure. “The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.” (Williams v. Superior Court (2017) 3 Cal.5th 531, 552.) If the objecting party shows all three elements, then the court must balance the need for disclosure against the right to privacy. (Ibid.) The court must also consider “the availability of alternatives and protective measures.” (Id. at p. 556.)

Here,

Plaintiff cannot show that he has an objectively reasonable expectation of privacy in these police records given the circumstances. Plaintiff sued Defendants to recover damages for a motor vehicle incident in which he was struck by a car as a pedestrian. Plaintiff would reasonably expect that other motor vehicle accidents with which he was involved, especially as a pedestrian, may be discovered in this case. The intrusion is not serious. The narrowed subpoena seeks records related to one incident—not eight years of law enforcement information as was initially sought.

Disposition

Plaintiff

Oscar Perez’s motion to quash deposition subpoena directed at San Fernando Police Department is granted in part. The Court hereby modifies

the subpoena directed to the San Fernando Police Department to seek the following records:

Any traffic collision report, crime or criminal report, incident report, arrest report, event or dispatch report, or other document containing information concerning a traffic collision occurring between June 1, 2019 and July 31, 2019 in which OSCAR PEREZ-SIANUQUI aka OSCAR PEREZ aka OSCAR PEREZ-SIANUQUI (DOB 9/4/1996) was involved, and in which Mr. Perez jumped or climbed onto a moving vehicle that thereafter collided with a tree, injuring Mr. Perez and Carla Guzman.